

IN THE SENATE

SENATE BILL NO. 1411

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING SECTION 34-1807, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE CIRCULATION OF PETITIONS, TO REVISE PROVISIONS REGARDING SIGNATURE GATHERERS, AND TO MAKE TECHNICAL CORRECTIONS; AMENDING CHAPTER 66, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-6628B, IDAHO CODE, TO PROVIDE CERTAIN REQUIREMENTS FOR PERSONS ENGAGED IN PAID IN-PERSON CANVASSING ACTIVITIES; AMENDING SECTION 67-6625, IDAHO CODE, TO PROVIDE A CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 34-1807, Idaho Code, be, and the same is hereby amended to read as follows:

34-1807. CIRCULATION OF PETITIONS -- ~~PAID~~ SIGNATURE GATHERERS -- VERIFICATION OF PETITION AND SIGNATURE SHEETS -- CERTIFICATION OF PETITION SIGNERS -- CERTAIN PETITIONS AND SIGNATURES VOID. (1) Any person who circulates any petition for an initiative or referendum shall be a ~~resident~~ qualified elector of the state of Idaho ~~and at least eighteen (18) years of age and shall comply with all provisions of section 67-6628B, Idaho Code, in the course of circulating any such petition.~~

~~(2) (a) Any person who accepts payment to circulate a petition for an initiative or referendum shall, prior to accepting a signature:~~

~~(i) Verbally notify any potential signatory that such person is accepting payment to gather signatures and provide the name of the person or entity providing payment to such person; and~~

~~(ii) Cause to be printed on each page of any petition for an initiative or referendum a prominent and legible declaration that such person is receiving payment in exchange for circulating the petition and the name of the person providing payment to such person.~~

~~(b) At all times a person is circulating a petition pursuant to paragraph (a) of this subsection, such person shall wear a badge that is clearly visible to any potential signatory and that contains the words "paid petition circulator" on it.~~

~~(c) The Idaho secretary of state shall promulgate rules to implement the provisions of this subsection, which shall provide details regarding the font specifications that shall be required for the printed declaration required under paragraph (a) (ii) of this subsection and the specifications regarding font, shape, color, and size requirements for the badge required under paragraph (b) of this subsection.~~

~~(3) (2) Each and every sheet of every such petition for an initiative or referendum~~ containing signatures shall be verified on the face thereof in

substantially the following form, by the person who circulated said sheet of said petition, by his or her affidavit thereon, and as a part thereof:

(a) For persons not accepting payment for circulating a petition:

State of Idaho)
) ss.
County of....)

I, , being first duly sworn, say that I am a ~~resident~~ qualified elector of the State of Idaho ~~and at least eighteen (18) years of age~~; that I have not and will not accept remuneration in any way related to the petition; that every person who signed this sheet of the foregoing petition signed his or her name thereto in my presence; that I believe that each has stated his or her name, address and residence correctly; and that each signer is a qualified elector of the State of Idaho and a resident of the county of....

Signed.....

Post office address.....

Subscribed and sworn to before me this.... day of....

(Notary Seal)

Notary Public

Residing at

(b) For persons accepting payment for circulating a petition:

State of Idaho)
) ss.
County of....)

I, , being first duly sworn, say that I am a ~~resident~~ qualified elector of the ~~state~~ State of Idaho ~~and at least eighteen (18) years of age~~; that every person who signed this sheet of the foregoing petition signed his or her name thereto in my presence, after I verbally notified each individual signer that I will receive payment in exchange for gathering the signatures on this sheet; that I believe that each has stated his or her name, address and residence correctly; and that each signer is a qualified elector of the State of Idaho and a resident of the county of....

I am accepting payment for the circulation of the foregoing petition by.... and the address of such payor is....

Signed.....

Post office address.....

Subscribed and sworn to before me this.... day of....

(Notary Seal)

Notary Public

Residing at

~~(4)~~ (3) In addition to said affidavit, the county clerk shall carefully examine said petitions and strike from the petition any names for which he has determined that the name, address, or signature do not match and confirm that each name, address, and signature matches those of a qualified elector of the proper jurisdiction and that the petitions conform to all other provisions of this section. The county clerk shall attach to the signature sheets a certificate to the secretary of state substantially as follows:

1 State of Idaho)
 2) ss.
 3 County of....)
 4 To the Honorable...., Secretary of State for the State of Idaho:
 5 I,...., County Clerk of.... County, hereby certify that.... signatures on
 6 this petition are those of qualified electors in Legislative District Num-
 7 ber.....
 8 Signed.....
 9 County Clerk or Deputy.
 10 (Seal of office)

11 ~~(5)~~ (4) The county clerk shall deliver the petition or any part thereof
 12 to the person from whom he received it with his certificate attached thereto
 13 as above provided. The forms herein given are not mandatory and if substan-
 14 tially followed in any petition, it shall be sufficient, disregarding clerical
 15 and merely technical error.

16 ~~(6)~~ (5) Any petition on which signatures are obtained by a person not a
 17 ~~resident qualified elector~~ of the state of Idaho and at least eighteen (18)
 18 ~~years of age~~ shall be void. The definition of ~~resident qualified elector~~ in
 19 section ~~34-107~~ 34-104, Idaho Code, shall apply to the circulators of initia-
 20 tive and referendum petitions.

21 ~~(7)~~ (6) Any signature that is not a physical signature, including an
 22 electronic signature, is void.

23 ~~(8)~~ (7) Any petition for an initiative or referendum on which signa-
 24 tures are obtained that is circulated in violation of the disclosure provi-
 25 sions provided in ~~subsection (2) of this section~~ 67-6628B, Idaho Code, is
 26 void.

27 SECTION 2. That Chapter 66, Title 67, Idaho Code, be, and the same is
 28 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 29 ignated as Section 67-6628B, Idaho Code, and to read as follows:

30 67-6628B. PAID IN-PERSON CANVASSING ACTIVITIES -- DISCLOSURES. (1)
 31 For the purposes of this section:

32 (a) "Paid in-person canvassing activities" means canvassing activi-
 33 ties performed by an individual who accepts financial compensation for
 34 the purpose of influencing how a person votes, including but not limited
 35 to circulating any petition for an initiative or referendum; soliciting
 36 personal residences or public locations to communicate with or distrib-
 37 ute materials to possible voters about political candidates or ballot
 38 measures; conducting in-person get-out-the-vote efforts in relation to
 39 any candidate or ballot measure; and any other direct, in-person con-
 40 tact or interaction intended to affect an individual's electoral par-
 41 ticipation or preferences.

42 (b) "Phone banking activities" means any organized outreach activity
 43 in which telephone calls are made to Idaho qualified electors for the
 44 purpose of persuading such electors to vote or to vote in a particular
 45 manner, providing information to such electors regarding an election or
 46 voting, or mobilizing such electors to vote.

47 (2) Persons who engage in any paid in-person canvassing activities
 48 shall:

(a) Meet all of the qualifications of a qualified elector, as defined in section 34-104, Idaho Code, except that a person under eighteen (18) years of age shall only be required to have resided in this state for at least thirty (30) days;

(b) Verbally notify any person with whom they communicate that they are being compensated to perform paid in-person canvassing activities and provide the name of the persons or entities providing payment to such person; and

(c) At all times, while engaging in paid in-person canvassing activities, wear a badge that is clearly visible to any person with whom they intend to communicate with that contains the words "paid political advocate" as well as the name of the persons or entities providing payment to such person.

(3) The Idaho secretary of state may promulgate rules to implement the provisions of this section, including specifications regarding font, shape, color, and size requirements for the badge required pursuant to subsection (2)(c) of this section.

(4) The provisions of this section shall not apply to:

(a) Volunteers acting without compensation or reimbursement beyond incidental expenses;

(b) Individuals whose paid in-person canvassing activities are incidental to broader campaign employment responsibilities;

(c) Phone banking activities; or

(d) Candidates engaged in in-person canvassing activities for their own election campaign.

SECTION 3. That Section 67-6625, Idaho Code, be, and the same is hereby amended to read as follows:

67-6625. VIOLATIONS -- CIVIL FINE -- MISDEMEANOR PENALTY -- PROSECUTION -- LIMITATION -- VENUE. (1) Any person who violates the provisions of sections 67-6603, 67-6604, 67-6606 through 67-6614A, 67-6624, 67-6627 ~~or~~, 67-6628, or 67-6628B, Idaho Code, shall be liable for a civil fine not to exceed two hundred fifty dollars (\$250) if an individual, and not more than two thousand five hundred dollars (\$2,500) if a person other than an individual. The burden of proof for such civil liability shall be met by showing a preponderance of the evidence.

(2) Any person who violates section 67-6605, Idaho Code, and any person who knowingly and willfully violates sections 67-6603 through 67-6614A, 67-6624, 67-6627 ~~or~~, 67-6628, or 67-6628B, Idaho Code, is guilty of a misdemeanor and, upon conviction, in addition to the fines set forth in subsection (1) of this section, may be imprisoned for not more than six (6) months or be both fined and imprisoned.

(3) The attorney general or the appropriate prosecuting attorney may prosecute any violations of this chapter.

(4) Prosecution for a civil or misdemeanor violation of this chapter must be commenced within two (2) years after the date on which the violation occurred. Prosecution for a felony violation of this chapter must be commenced pursuant to the provisions of section 19-402, Idaho Code.

1 (5) Venue for prosecution under the provisions of this chapter shall be
2 in the county of residence of the defendant if the defendant is a resident of
3 the state of Idaho, otherwise venue shall be in Ada county.

4 SECTION 4. An emergency existing therefor, which emergency is hereby
5 declared to exist, this act shall be in full force and effect on and after
6 July 1, 2026.